Australian Government

Australian Fisheries Management Authority

DIRECTION NOT TO ENGAGE IN FISHING

Fisheries Management Act 1991
Subsection 41A(2)

SOUTHERN AND EASTERN SCALEFISH AND SHARK FISHERY (Closures) DIRECTION No. 5 2012

I, **JAMES FINDLAY**, Chief Executive Officer of the Australian Fisheries Management Authority, as delegate under delegation No. 1 of 2011 made on 28th January 2011 from the Commission, make the following Direction under subsection 41A(2) of the *Fisheries Management Act 1991*.

Dated: 19 September 2012

James Findlay
Chief Executive Officer
Australian Fisheries Management Authority

Citation

1. This Direction may be cited as the *Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 5 2012*.

Commencement

2. This Direction commences on 1 October 2012.

Cessation

3. This Direction ceases as if it was revoked on 23 September 2013 unless earlier revoked.

Interpretation

4. Terms used in this Direction that are defined for the purposes of the *Southern and Eastern Scalefish and Shark Fishery Management Plan 2003* (the Plan) have the same meanings in this Direction as they have in the Plan.

Notes: 1. Terms defined in the *Fisheries Management Act 1991* have the same meanings in this Direction.

To whom this Direction applies

5. This Direction applies to a holder, in the Southern and Eastern Scalefish and Shark Fishery, of:

a. a Gillnet Boat Statutory Fishing Right; and/or

b. a South Australian Coastal Waters Permit

and to a person acting on behalf of the holder.

[**Note**: This means that the Direction does not apply to a person if the person is fishing in the area of the Fishery in accordance with a fishing concession that is subject to another plan of management in force under the Act, under a scientific permit, a permit issued in another fishery, or under a licence issued under a law of a State or Territory.]

Direction not to engage in fishing

6. Fishing by gillnet methods is not to be engaged in in the areas of waters of the Southern and Eastern Scalefish and Shark Fishery described in Schedule 1.

Interaction with other legislative instruments

7. For the avoidance of doubt:

This Direction does not affect any other Direction made under s41A of the *Fisheries Management Act 1991* (the Management Act), or, prior to the commencement of the *Fisheries Legislation Amendment Act (No. 2) 2010*, under former section 17(5A) of the Management Act and section 56 of the Management Plan, which Directions continue in force according to their terms.

Schedule 1

Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 5 2012.

Fishing by gillnet methods is not to be engaged in in the following area:

Dolphin Gillnet Closure

The area of the Dolphin Gillnet Closure is the part of the Australian Fishing Zone and coastal waters of the State of South Australia contained within and bounded by a line:

a) Starting at the intersection of 137° 08'E and the low water mark of Kangaroo Island;
b) Then south to 36° 24'S 137° 08'E;
c) Then southeast to 37° 00'S 138° 50'E;
d) Then southeast to the intersection of 37° 09' 24"S and the low water mark of the coast of mainland Australia in the vicinity of Cape Dombey;
e) Then generally northwest along the coast of mainland Australia to the intersection of 138° 08'E and the low water mark;
f) Then south to the intersection of 138° 08'E and the low water mark of Kangaroo Island in the vicinity of Cape Willoughby;
g) Then generally southwest along the coast to the point of commencement.